

The case was then dismissed.

The Defendant made payments of \$5,295.

Costs are \$518.50.

Disposition

Plaintiff's Motion is **granted**. Judgment will be entered in the amount of \$7,521.08.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L23-01483

CASE NAME: TD BANK USA, N.A., AS SUCCESSOR IN INTEREST TO TARGET NATIONAL BANK VS. KATHRYN STRATTAN

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE SETTLEMENT AND RESTORE TO ACTIVE STATUS**

FILED BY: TD BANK USA, N.A., AS SUCCESSOR IN INTEREST TO TARGET NATIONAL BANK

TENTATIVE RULING:

Plaintiff filed a motion to set aside notice of settlement.

On 8/1/23, Plaintiff filed a Notice of Conditional Settlement, indicating that, upon the completion of particular conditions, the matter would be dismissed, and that Plaintiff would file a request for dismissal no later than 8/12/24.

No Request for dismissal was ever filed. Thus, it was never dismissed.

Disposition

The case remains active.

Plaintiff's Motion is moot and it will be dropped.

3. 9:00 AM CASE NUMBER: L23-02492

CASE NAME: CAPITAL ONE, N.A. VS. KENDALL AUSTIN

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

However, mail service was completed at an address for the Defendant (Pleasant Hill) that is different than the address where Defendant was personally served with process (Concord). There are no other court filings reflected a Pleasant Hill address for Defendant.

Thus, service is not effective.

Disposition

Plaintiff's Motion is continued to 7/14/26, 9am.

Plaintiff to file Order and to serve Defendant with Notice of Motion and hearing.

4. 9:00 AM CASE NUMBER: L24-01151
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRISTOPHER WALSH
***HEARING ON MOTION IN RE: NOTICE OF MOTION FOR SET ASIDE JUDGMENT**
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Plaintiff filed a Motion to set aside a default judgment and dismiss the case without prejudice.

The Motion is not noticed and is unopposed, but there is no prejudice to Defendant.

Disposition

Motion is **granted**.

Case is dismissed without prejudice.

Plaintiff shall prepare and submit the Order.

5. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION FOR DISCOVERY TO DEEM REQ FOR ADMISSIONS ADMITTED AND OF**
NONAPPEARANCE
FILED BY: MERCURY CASUALTY COMPANY
TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff also sought fees in the amount of \$400, for attorney's fees (2 hours at \$200/hr), and \$60 for